IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 331 (1) of the Criminal Procedure Act No. 15 of 1979

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant

Court of Appeal
Case No. CA/HCC/172-173/2024

Vs.

High Court of Colombo
Case No. HC/3076/2006

1. Kamburugama Loku Acharige Chaminda Kumara
2. Sube Appu Kankanamlage Anura Dharmapriya Weerawardena
3. D. J. A. L. Laos Dissanayake
4. M. A. Mohammed Ajish

Accused

AND NOW BETWEEN

1. Kamburugama Loku Acharige Chaminda Kumara
2. Sube Appu Kankanamlage Anura Dharmapriya Weerawardena

Accused-Appellants

Vs.

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before: **Amal Ranaraja, J.**

Dr. Sumudu Premachandra, J.

Counsel: Sarath Jayamanne, P.C. with Dinindu Rathnayake, Anjuna Wilwaraarachchie, Himalshi Fernando and Uvindu Bandara for the 1st Accused-Appellant.

Nalin Ladduwahetty, P.C. with Kavithri Ubeysekera and Rajith Samarasekera for the 2nd Accused-Appellant.

Shanil Kularatne, A.S.G. for the State

Argued on: 17.09.2026

Judgment on: 30.10.2026

JUDGMENT

AMAL RANARAJA, J.

1. The accused-appellants (hereinafter referred to as the appellants have been indicted in the High Court of *Colombo* along with two others, in case number HC-3076/2006. The charges in the indictment are as follows;

    01. That on or about the period between July 13, 2005, and July 14, 2005, at *Peliyagoda*, in the district of *Colombo*, within the jurisdiction of this court, the appellants wrongfully confined *Hettiarachchige Abeysiri alias Ranjith*; thereby committed an offence punishable in terms of Section 339 read with Section 32 of the Penal Code.

02. On or around the 14th of July, 2005, in the location and course of action of the above first charge, you, as the above named third accused, has aided and abetted the above first and second accused, to commit said offence in the first charge, and as a result, they have committed said offence; thereby you have committed an offence punishable under Section 339 read with Section 102 of the Penal Code of Sri Lanka.

03. On or around the 14th of July, 2005, in the location and course of action of the above first charge, you, as the above named fourth accused, has aided and abetted the above first and second accused, to commit said offence in the first charge, and as a result, they have committed said offence; thereby you have committed an offence punishable under Section 339 read with Section 102 of the Penal Code of Sri Lanka.

04.That on or about July 14, 2005, during the same course of transaction as above, the first and second accused caused mental/physical pain to *Hettiarachchige Abeysiri alias Ranjith,* to obtain a confession/statement; thereby committed an offence punishable in terms of section 2(4) of the Convention Against Torture, and Other Cruel, Inhuman, or Degrading Treatment or Punishment Act No. 22 of 1994.

05. In the time, place, the location, and course of action of the above fourth charge, you, as the above named third accused, has aided and abetted the above first and second accused, to commit said offence in the fourth charge, and as a result, they have committed said offence; thereby you have committed an offence punishable under Section 2(4) read with Section 2(2)(b) of the Convention Against Torture, and Other Cruel, Inhuman, or Degrading Treatment or Punishment Act No. 22 of 1994.

06. In the time, place, the location, and course of action of the above fourth charge, you, as the above named fourth accused, has aided and abetted the above first and second accused, to commit said offence in the fourth charge, and as a result, they have committed said offence; thereby you have committed an offence punishable under Section 2(4) read with Section 2(2)(b) of the Convention Against Torture, and Other Cruel, Inhuman, or Degrading Treatment or Punishment Act No. 22 of 1994.

07. During the same course of transaction as the first charge above, the first and second accused committed murder by causing the death of *Hettiarachchige Abeysiri alias Ranjith*; thereby committed an offence punishable in terms of section 296 of the Penal Code.

2. At the conclusion of the trial, the learned High Court Judge has convicted the appellants of the first, fourth and the seventh charges and sentenced them as follows;

Two years rigorous imprisonment and a fine of Rs. 15,000.00 with a term of 6 months simple imprisonment in default, in respect of the first charge.

Ten years rigorous imprisonment and a fine of Rs.50,000.00 with a term of 1 year simple imprisonment in default, in respect of the fourth charge.

The appellants have been sentenced to death in respect of the seventh charge.

Also, the appellants have been ordered to pay a sum of Rs.1,000,000.00 (one million) each as compensation with a term of 2 years simple imprisonment in default.

Case of the Prosecution

3. During the period in question, the appellants being police officers have been assigned to the crimes branch of the *Peliyagoda* Police Station. On July 13th, 2005, the deceased named in the seventh charge has been arrested on suspicion of stealing a telephone from PW04 and has been brought to the Police Station's crime branch.

4. The officers on duty at that time being the appellants, have been informed of this incident by PW04. Following this the appellants have detained the deceased and begun an investigation. It is alleged that the deceased was held by the appellants improperly resulting in wrongful restraint. Furthermore, it is claimed that the appellants subjected the deceased to physical and mental pain with the intention of obtaining a confession or statement. These physical assaults are further alleged to have caused injuries that ultimately lead to the deceased's death.

Case of the Appellants

5. The appellants have asserted that they investigated a complaint regarding the theft of a telephone. During this investigation, that they detained both the deceased and PW01 intending to produce them before a Magistrate within twenty four hours of their detention. Unfortunately, the deceased has fallen ill during this period and has subsequently passed away. The appellants have denied the incidents referred to in the first, fourth and seventh charges.

Grounds of Appeal

6. When the matter was taken up for argument, the learned counsel appearing on behalf of the appellants raised the following grounds of appeal;

   I. The learned High Court Judge has failed to properly consider the legal requirements of section 294(3) of the penal code of Sri Lanka

   II. PW01 and pw08 contradict each other but the learned High Court Judge has not considered the material *interse* contradictions.

   III. The prosecution has failed to exclude a criminality of third parties.

   IV. Has the learned High Court Judge wrongly rejected the evidence of PW08?

   V. Has the learned High Court Judge wrongly evaluated the evidence of PW01?

   VI. Has the learned High Court Judge prejudged the case in contravention of section 283 of the Code of Criminal Procedure Act No. 15 of 1979?

   VII. Has the learned High Court Judge failed to evaluate the medical evidence properly?

"මෙම නඩුවේ මරණකරු මියගොස් ඇත්තේ එලෙස ඔහුගේ ශරීරයට මොට ආයුධයකින් සිදුවූ බලපෑම නිසා ඇතිවූ අස්ථි භග්නයන් සහ පේශීන් වලට සිදුවූ හානි හේතුකොටගෙන සිදුවූ අභ්‍යන්තර රුධිරවහනය සහ කම්පනය නිසා බවට පැහැදිලිව වෛද්‍ය සාක්ෂි ඉදිරිපත් වී ඇති අතර මෙමඟින් මරණකරුගේ මරණයට දායක වීමට අදාලවබහුවිධ පහරදීම

තුවාල ගණනාවක්ම සිදුකර ඇත්තේ මෙම 2 වන චූදිත බවට සිද්ධිය ඇසින් දැක ඇති පැ.සා. 1 ගේ සාක්ෂියෙන් මැනවින් හෙලිවේ. ඒ අනුව මෙම නඩුවෙහි 2 වන චූදිතට එරෙහිව ඉදිරිපත් කර ඇති එනම් 1 වන චූදිත සමඟ මෙම නඩුවේ මරණකරුවන හෙට්ටිආරච්චිගේ අබේසිංහ නොහොත් රංජිත් යන අයගේ මරණය සිදු කිරීමේ 07 වන චෝදනාවද සාධාරන සැකයෙන් ඔබ්බට ඔප්පුවී ඇති බවට මා තීරණය කරමි."

Vide Pages 1155 & 1156 of the Brief

7. Accordingly, the learned High Court Judge has concluded that the bodily injury inflicted upon the deceased was, in the ordinary course of nature, sufficient to cause the death of the deceased. Consequently, the appellants have been convicted of murder under the third limb of Section 294 of the Penal Code of Sri Lanka.

8. The third limb of the Section 294 of the Penal Code provides as follows;

> *" **294.** Except in the cases hereinafter excepted, culpable homicide is murder-*
>
> *Thirdly - If it is done with the intention of causing bodily injury to any person, and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death."*

9. The third limb to Section 294 of the Penal Code of Sri Lanka states that culpable homicide amounts to murder, if the act is done with the intention of causing bodily injury to any person, and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death.

10. The offender must deliberately intend to inflict a specific bodily harm or injury to a person. Unlike the first limb, the prosecution does not need to prove that the accused had a specific conscious intent to cause

death. The injury that the offender intended to inflict must be objectively fatal, meaning it is serious enough to cause death in the ordinary natural course of events.

11. In the case of *Vithana and Another Vs. The Republic of Sri Lanka [2007] 1 SLR 169*, Sisira de Abrew J. held as follows,

> *"The ingredients that must be proved by the prosecution in order to prove a charge of murder under the 3rd limb of section 294 are that:*
>
> *(i) The accused inflicted a bodily injury on the victim.*
>
> *(ii) The victim died as a result of the above bodily injury.*
>
> *(iii) The accused had the intention to cause the bodily injury.*
>
> (iv) *The above injury was sufficient to cause the death of the victim in the ordinary course of nature."*

12. "Sufficient to cause death in the ordinary course of nature" is a critical element to distinguish murder from culpable homicide. A Court is a legal expert, not a medical one. Therefore, it relies heavily on the testimony and reports of the forensic pathologist or medical officer who conducted the postmortem examination.

13. The doctor's opinion is relevant in this instance, and the prosecution should explicitly ask the medical expert during examination, "Was this injury sufficient to cause death in the ordinary cause of nature?". A court can thereafter evaluate medical details regarding the depth, width and the location of the injury. Injuries to vital organs are almost always ruled as naturally sufficient to cause death. The court would also look at the capacity of the weapon to cause lethal damage.

14. *Dr. M.P.A.B Abeysinghe*, an assistant Judicial Medical Officer in Colombo has conducted the post-mortem examination of the deceased. The postmortem report has been submitted as evidence and marked *පැ01*.

15. In his testimony, *Dr. Abeysinghe* has identified both external and internal injuries on the deceased. He has concluded that some internal injuries correspond with the external injuries, while others did not. He has categorised certain injuries as non-grievous and others grievous. Ultimately, he has opined that the death has resulted from haemorrhagic shock, caused by multiple muscle injuries sustained from blunt weapon trauma.

16. Although *Dr. Abeysinghe* has testified as previously mentioned, he has not elaborated on whether any of those injuries were sufficient to cause death in the ordinary course of nature. He has merely stated the following regarding the 9th internal injury;

> *"ප්‍ර: මෙවැනි ආකාරයට අස්ථිවල නොයෙක් ස්ථානවල බග්න ඇතිවීමෙන් තුවාල ඇතිවිය හැක්කේ කෙසේද?*
>
> *උ: මෙය ඉතා විශාල ප්‍රදේශයන පිහිටි ගැඹුරු තැලීම් තුවාලයක්. එමෙන්ම උරපත් අස්ථි දෙකම තැන් කීපයකින් බග්න වී තිබුනා. මේ ආශ්‍රිතව මෙම ප්‍රදේශයේ විශාල ගැඹුරට ලේ ගැලීම් සිදුවී තිබුනා. මෙම තුවාලය තනිවගත් කල බග්නයන් නිසා අස්ථීන් බරපතල තුවාල ලෙස නම් කරන අතර, එමගින් ඇති විය හැකි අධික රුධිර වහනය නිසා, මෙවැනි අයෙකු මරාංතික තත්ත්වයට එසේ නැත්නම් එවැනි තත්වයකර පවා ගෙන දියහැකි තුවාලයක්."*
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> *Vide Pages 516 & 517 of the Brief*

17. *Dr. Abeysinghe* has not specified which injury/injuries were sufficient to cause the deceased's death in the ordinary course of nature. Consequently, there is a critical deficiency of evidence regarding an essential element for the application of the third limb of Section 294 of the Penal Code of Sri Lanka.

18. The learned High Court Judge has also held as follows;

> *"මරණකරුගේ ශරීරයේ තුවල 26ක් තිබී ඇති අතර ඒ අතුරින් ඉහත කී 9 වන තුවාලය පමනක් එක්ව ගත් කල වුවද එම තුවාලය සමාන්‍ය තත්වය යටතේ මරණය ගෙනදීමට ප්‍රමානවත් තුවාලයක් බවට ඉතා පැහැදිලි වන බැවින්, මෙම නඩුවේ චූදිතයන් හට මරණකරුට පහරදුන් අවස්තාවේ ඔහුගේ මරණය සිදු කිරීමේ මරණීය චේතනාවක් (Murderous Intention) තිබී ඇති බව මාගේ නිගමනයයි."*
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> *Vide Page 1160 of the Brief*

19. That is, the appellants did have a "murderous intention", when they allegedly assaulted the deceased. As discussed earlier in the judgement the mental element that needs to be established regarding the third limb of Section 294 of the Penal Code of Sri Lanka, is that an accused intended to cause such bodily injury to the deceased. The learned High Court Judge's conclusion is, therefore, inconsistent with this requirement. Hence, the learned High Court Judge has misdirected himself on the facts and the relevant legal principles discussed above.

20. With regard to the alleged assault by the appellants on the deceased, the prosecution has relied on the testimonies of PW01 and PW08. PW01 has been detained with the deceased on suspicion of stealing a phone, while PW08 was at the material time a female police officer attached to the crime branch of the *Peliyagoda* Police Station. PW01 and PW08 have testified as follows;

ප්‍ර: අපරාධ අංශයට ගිය විට මාංචු දානවා දැක්කාද?

උ: ඔව්

ප්‍ර: කොහොමද මාංචු දැම්මේ?

උ: එකක් අතට දාලා, අනික ජනේලයට දැම්මා

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ප්‍ර: දෙදෙනා අතේ විකට් පොලු තිබුනාද?

උ: එක් කෙනෙක් අතේ තිබුනා

ප්‍ර: විකට් පොලු වලින් කොහෙටද ගැසුවේ?

උ: සාක්ශිකරු උරහිස පෙන්වා සිටී.

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ප්‍ර: මා කියන්නේ දැන් මාංචු දාලා ගහලා ඉවර වෙලා ගැලෙව්වා මාංචු? ගලවල ඉවර වෙලා මොකද කලේ?

උ: මේසය උඩ නිදි කරලා යටි පතුල් වලට ගැහුවා.

ප්‍ර: ඒ මොකෙන්ද?

උ: ඒත් අර පොල්ලෙන්

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21. That is the appellants brought the deceased to the crime branch. The first appellant then handcuffed the deceased to a window grill. After securing the deceased in this manner, the first appellant punched him in the face with his fist. The second appellant holding a stump first struck the deceased's shoulder. Subsequently, the second appellant made the deceased lie down on a table and hit the soles of his feet with the stump.

ප්‍ර: එතකොට ඒ පුද්ගලයා අපරාධ අංශයට අරන් ඇවිල්ලා කොතැනද ඔහුට ඉන්න කියුවේ?

උ: එතැන ජනෙල් තුනක් තිබෙනවා. එතන පුටුවක වාඩිකරලා ඔවුන් ප්‍රශ්න කරනවා දැක්කා.

...

ප්‍ර: කොපමන වෙලාවක් එසේ ප්‍රශ්න කරනවා දැක්කාද?

උ: ප්‍රශ්න කරමින් ඉන්නකොට මම කෑමට ගියා. මම යනකොට විනාඩි 10ක් පමණ ප්‍රශ්න කරමින් සිටියා. ඊට පසු විනාඩි 15කින් පමණ පසුව මම කෑම කාලා ආයෙමත් බිරාන්ච් එකට ආවා. ඒ එනකොට ඊංජී ඉතා අපහසුවෙන් බිංකුවක වාඩි වෙලා බිත්තියක හේත්තුවෙලා ඉතා අපහසුවෙන් සිටියා. වෙනාඩි ගාන ගැන කියන්න බැහැ. පැය භාගයක් අතර කාලයක් සිටියා.

...

ප්‍ර: ඔබ එතකොට ගත්ත ක්‍රියාමාර්ගය මොකක්ද?

උ: ඕ.අයි.සී. මහතා මුලස්ථානාධිපති ලෙස වැඩ කරමින් සිටියා. මම ඔහුට ගිහින් කියුවා

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22. That is, PW08 had been on duty at the crime branch that morning when the second appellant bought the deceased to that location. The second appellant has then seated the deceased on a chair and questioned him regarding the incident for which he has been detained. PW08 has observed the deceased being questioned in that manner for approximately ten minutes. Afterward she had gone to the canteen to have her breakfast. When she returned to her seat, she has noticed that the deceased appeared to be in discomfort and had rested his head against the wall. PW08 has then informed the acting Headquarters inspector of the police station (PW21) about her observations.

23. Considering the previously mentioned testimonies of PW01 and PW08, it becomes evident that there are material discrepancies between their

testimony. The discrepancies highlight several inconsistencies. These include the simultaneous presence of both appellants at the crime branch, whether the deceased was assaulted by the appellants, the presence of PW01 to observe any potential assault of the deceased, and the atmosphere at the crime branch at that specific time, specifically if other individuals were present who might have impeded an assault.

24. The inconsistencies and contradictions *interse* in the testimonies of PW01 and PW08 undermine their credibility. These discrepancies suggest that their narratives may not be reliable, casting doubt on the validity of their testimony. It is important to examine these inconsistencies closely, as they play a significant role in assessing the overall trustworthiness of the evidence presented.

25. To overcome this impediment, the learned High Court Judge has disbelieved the testimony of PW08. The judge has stated that PW08's testimony was disregarded because she had testified under stressful circumstances.

26. PW08 has testified on two occasions. That is, on September 14th, 2011, and June 28th, 2018. On September 14th, 2011, evidence in chief has been presented, cross examination conducted, and the witness has been released after re-examination. Subsequently, following an application made on behalf of the second appellant, PW08 has been recalled solely for cross examination on June 28th, 2018. During this latter appearance, the witness's attention has been directed to certain photographs, and she has been questioned about the setting of the crime branch in the *Peliyagoda* Police Station.

27. At that time, almost seven years later, PW08 has stated that she was grappling with an issue and felt depressed under those circumstances;

උ: කාලයක් ගොඩක් වැඩියි. අනික් එක මම ගොඩක් මානසික වැටිලා ඉන්නේ. මට ලොකු ප්‍රශ්නයක් තියනවා. ඒ හන්ද මට ඒක හරියටම කියන්න අමාරුයි.

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28. PW08 has not stated that she was in a depressed state when she testified on September 14th, 2011. However, the learned High Court Judge has stated in the disputed judgement that PW08 was in a significantly impaired state when she testified entirely, which has not been the case. Therefore, the learned High Court Judge has rejected PW08's evidence on unfounded grounds representing a misdirection of facts.

29. Furthermore, if the deceased had been handcuffed to a window grill and subsequently assaulted, the movement of his hand likely would have caused injuries in the wrist area. However, *Dr. Abeysinghe* has observed no such injuries. The same lack of injuries applies to the soles of the deceased's feet, where no injuries were found either. Therefore, these circumstances do not medically corroborate the testimony of PW01.

    The testimony lead on behalf of the prosecution also indicates that the deceased had attempted to escape from PW04 (the complainant of the theft of a telephone) when he was taken to his lodging. A third individual has apparently pursued and apprehended the deceased, subsequently, returning him to PW04. During this pursuit, PW04 has lost sight of the deceased. Upon the deceased's return, a fresh injury near the nose has been observed. This suggests the possibility that the deceased sustained injury due to an assault by the third individual during that incident. If other injuries were sustained at that time, they would not have been visible to PW04 or PW12, the duty officer at the *Paliyagoda* Police Station because, the deceased was dressed in a sarong and shirt when brough to the police station by PW04. Moreover, the prosecution has not presented any testimony regarding the age of the injuries

inflicted on the deceased nor the pain caused by the injuries nor, the deceased's ability or inability in normal activities despite being injured. Therefore, the fact that the deceased had not exhibited major discomfort after the incident, cannot rule out the possibility that the injuries were caused by such third person.

30. The statement "contents of a document has to be established by producing such document" reflects the best evidence rule in law, meaning a document's written contents must be proved by submitting the actual document itself rather than relying on someone's spoken memory or descriptions. The law prefers primary evidence, which is the original document produced to a Court for legal inspection.

31. In the case of *Keerthi Bandara vs. The Attorney General [2000] 2 SLR 245,* Niinian Jayasuriya J., has held as follows;

> *"The best evidence rule which is a fundamental tenet in the law of evidence would totally exclude the oral evidence of a police officer in regard to the contents of a matter which is required by law and which in fact has been reduced to writing, to be led after refreshing his mind from the document without the document being marked."*

32. The prosecution, through the testimony of PW21, who was the acting headquarters inspector of the particular police station at the time of the alleged incidents, has attempted to orally establish specific regulations. These regulations concern an officer's attire when on duty, and the procedure to be followed when a suspect is brought to a police station and detained. The prosecution has attempted to further assert that the appellants violated these regulations, thereby making them guilty of unlawful restraint of the deceased.

33. The regulations referenced must be documented adequately and it is essential for the prosecution to produce the actual document containing those regulations. Unfortunately, the prosecution has failed to provide this necessary evidence. Furthermore, they have not offered any explanation for this omission.

34. In cases where Court favours primary evidence, such as the original document, containing the relevant regulations it becomes imperative for the documents to be presented for legal scrutiny. Consequently, any testimony provided by PW21, as previously mentioned, should be disregarded and considered invalid. Without the primary evidence the testimony lacks sufficient credibility to support the prosecution's case.

35. Section 283 of Code of Criminal Procedure Act No. 15 of 1979 provides as follows;

> "**283.** *The following provisions shall apply to the judgments of courts other than the Supreme Court or Court of Appeal:*
>
> *(1) The judgment shall be written by the Judge who heard the case and shall be dated and signed by him in open court at the time of pronouncing it, and in case where appeal lies shall contain the point or points for determination, the decision thereon, and the reasons for the decision.*
>
> *(2) It shall specify the offence if any of which and the section of the law under which the accused is convicted and the punishment to which he is sentenced.*
>
> *(3) If it be a Judgment of acquittal it shall state the offence of which the accused is acquitted.*
>
> *(4) When a judgment has been so signed it cannot be altered or reviewed by the court which gives such judgment: Provided that a clerical error may be rectified at any time and that any other error may be rectified at any time before the court rises for the day.*

(5) The judgement shall be explained to the accused affected thereby and a copy thereof shall be given to him without delay if he applies for it.

(6) The original shall be filed with the record of proceedings. (Sections 279 and 283 shall apply to every judgement of a Primary Court-See section 33(2) of the Primary Courts'Procedure Act.)

36. Accordingly, in giving reasons for the decision, a Court is required to appreciate the testimony of witnesses in its entirety and in the context of the evidence as a whole, rather than evaluate piecemeal. Isolated statements should not be detached from their context. Discrepancies should be assessed according to their materiality and their effect on the overall credibility of their account.

37. In the case of *James Silva Vs. The Republic of Sri Lanka (1980) 2 SLR 167,* Rodrigo J., has stated as follows;

> *"A satisfactory way to arrive at a verdict of guilt or innocence is to consider all the matters before the Court adduced whether by the prosecution or by the defence in its totality without compartmentalising and, ask himself whether as a prudent man, in the circumstances of the particular case, he believes the accused guilty of the charge or not guilty."*

38. Further in the case *Dayarathne Wijesinudera and Two Others vs. The Attorney General (CA/HCC/29-30/2015) decided on 13.02.2020*, Achala Wengappuli J.,

> *"The superior Courts have consistently laid emphasis on the duty to consider the evidence as a whole, irrespective of whether the trial was held before a jury or Judge. In The King v Appuhamy 37 NLR 281, it is stated that "One has to look at the whole case". A similar approach was adopted by the Court of Criminal Appeal in King v Buckley 43 NLR 474,*

which imposed a duty on the jurors that they should view the evidence as a whole."

39. With regard to the judgement under challenge, it appears that the learned High Court Judge has assessed the witnesses' testimony piecemeal, rather than in its entirety and considered isolated statements out of context. Further, the learned High Court Judge appears to have concluded that the offences charged against the appellants have been proved beyond a reasonable doubt, before evaluating whether the testimony established the essential ingredients of those offences. In doing so, the learned High Court Judge appears to have prejudged the issue and thereby misdirected himself.

40. In those circumstances, I am inclined to interfere with the conviction, disputed judgement, together with the sentencing order and proceed to set aside the same.

41. I acquit the appellants of the charges but make no order regarding costs.

Appeal allowed.

42. The Registrar of this Court is directed to send this Judgment together with the original case record to the High Court of *Colombo* for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal